

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Strauss	Team: Squad #6	CCRB Case #: 201907566	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 08/09/2019 1:32 PM	Location of Incident: Hammersley Avenue and Fenton Avenue	Precinct: 47	18 Mo. SOL 2/9/2021	EO SOL 9/26/2021	
Date/Time CV Reported Tue, 08/13/2019 7:55 PM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Mon, 08/26/2019 11:05 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kyron Delarosa	11960	960431	047 PCT
2. POM Ryan Duffany	04399	960483	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Janet Rivera	03541	961171	047 PCT
2. POM Tyler Reyes	20619	959129	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Kyron Delarosa	Abuse: Police Officer Kyron De La Rosa searched the vehicle in which § 87(2)(b) was an occupant.	
B.POM Kyron Delarosa	Abuse: Police Officer Kyron De La Rosa searched § 87(2)(b)	
C.POM Kyron Delarosa	Force: Police Officer Kyron De La Rosa used physical force against § 87(2)(b)	
D.POM Ryan Duffany	Force: Police Officer Ryan Duffany used physical force against § 87(2)(b)	
E.POM Kyron Delarosa	Abuse: Police Officer Kyron De La Rosa threatened § 87(2)(b) with the use of force.	
F.POM Kyron Delarosa	Abuse: Police Officer Kyron De La Rosa seized § 87(2)(b)'s property.	
G.POM Ryan Duffany	Abuse: Police Officer Ryan Duffany seized § 87(2)(b)'s property.	
H.POM Kyron Delarosa	Abuse: Police Officer Kyron De La Rosa damaged § 87(2)(b)'s property.	

Case Summary

On August 13, 2019, Supervising Investigator Tiffany Robinson-McAulay of the NYC Department of Correction emailed the Internal Affairs Bureau and filed a complaint on behalf of § 87(2)(b). On August 26, 2019, the CCRB received this complaint from IAB, under original log #19-31026.

On August 9, 2019, at approximately 1:32 p.m., at Hammersley Avenue and Fenton Avenue in the Bronx, § 87(2)(b)'s vehicle was stopped by PO Kyron De La Rosa and PO Ryan Duffany, of the 47th Precinct. PO De La Rosa asked for § 87(2)(b)'s license and allegedly reached his arm into § 87(2)(b)'s vehicle, through the open window, and grabbed for § 87(2)(b)'s wallet (**Allegation A: Abuse of Authority, § 87(2)(g)**). PO De La Rosa grabbed § 87(2)(b)'s wallet out of his hand and looked through his wallet (**Allegation B: Abuse of Authority, § 87(2)(g)**). After § 87(2)(b) exited his vehicle, PO De La Rosa and PO Duffany twisted § 87(2)(b)'s arms and PO De La Rosa pushed him against his vehicle. During the scuffle, § 87(2)(b) ended up on the ground (**Allegations C and D: Force, § 87(2)(g)**). PO De La Rosa said that § 87(2)(b) was resisting and stated, "Don't let me tase you" (**Allegation E: Abuse of Authority, § 87(2)(g)**). PO De La Rosa and PO Duffany then handcuffed § 87(2)(b). § 87(2)(b)'s vehicle was towed back to the stationhouse (**Allegations F and G: Abuse of Authority, § 87(2)(g)**). PO De La Rosa physically took § 87(2)(b)'s watch, bracelet, necklace, and earrings off his body, which allegedly damaged the clasp of § 87(2)(b)'s watch (**Allegation H: Abuse of Authority, § 87(2)(g)**).

§ 87(2)(b) was arrested and charged with § 87(2)(a) 160.50

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Body-worn camera footage recorded by PO De La Rosa, PO Duffany, and two responding officers, PO Janet Rivera and PO Tyler Reyes of the 47th Precinct, was obtained (BR 02-08).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Kyron De La Rosa searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(g)

Body-worn camera (BWC) footage recorded by PO De La Rosa and PO Duffany captured the entire interaction with § 87(2)(b). Neither officer's BWC (BR 02 and 03) captured PO De La Rosa reaching his arm into § 87(2)(b)'s vehicle or searching § 87(2)(b)'s vehicle.

§ 87(2)(b) testified (BR 09) that his vehicle was stopped by PO De La Rosa and PO Duffany, though he did not commit any vehicular infractions. He drove with a suspended driver's license. When the officers approached, PO De La Rosa asked § 87(2)(b) for his license and registration. § 87(2)(b) had his wallet in his hand, and he stated that he was going to reach into the glove compartment to get his paperwork. PO De La Rosa did not give § 87(2)(b) a chance to retrieve his paperwork or explain anything. PO De La Rosa reached his arm into § 87(2)(b)'s vehicle, through the open window, and grabbed for § 87(2)(b)'s wallet.

PO De La Rosa testified (BR 10) that he and PO Duffany stopped § 87(2)(b) for using a mobile device while driving. PO Duffany asked § 87(2)(b) for his vehicle documentation. § 87(2)(b) stated

that he did not have an identification with a photograph. After going back and forth, § 87(2)(b) provided a temporary paper DMV license. PO Duffany ran the name that was on the temporary license and determined that it was not § 87(2)(b). § 87(2)(b) was then asked to exit his vehicle, and he complied. PO De La Rosa did not reach his arm into § 87(2)(b)'s vehicle and reach for § 87(2)(b)'s wallet.

PO Duffany's testimony (BR 11) was consistent with PO De La Rosa's testimony. PO De La Rosa did not reach his arm into § 87(2)(b)'s vehicle and reach for § 87(2)(b)'s wallet.

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Kyron De La Rosa searched § 87(2)(b)

§ 87(2)(g)

In PO Duffany's BWC footage (BR 02), at the 00:18 mark in the video player, PO Duffany and PO De La Rosa approached § 87(2)(b)'s vehicle. § 87(2)(b) told PO Duffany, who was on the driver's side, that he did not have an identification, as he looked through various papers. At the 00:36 mark, § 87(2)(b) handed PO Duffany a piece of paper. § 87(2)(b) stated that he lost his identification and was waiting for it to come in the mail. At the 02:25 mark, PO Duffany held the paper that § 87(2)(b) provided and used his department phone. At the 02:54 mark, PO Duffany showed PO De La Rosa his phone and asked if a photograph looked like § 87(2)(b). PO De La Rosa stated that it was not § 87(2)(b). PO Duffany and PO De La Rosa asked § 87(2)(b) to exit from his vehicle, and he complied.

In PO De La Rosa's BWC footage (BR 03), at the 03:26 mark, while outside of § 87(2)(b)'s vehicle, PO De La Rosa appeared to enter § 87(2)(b)'s left pants pocket. At the 03:56 mark, PO De La Rosa pulled an item out of § 87(2)(b)'s wallet, which he was holding, and handed it to PO Duffany. After § 87(2)(b) was arrested, at the 07:20 mark, PO De La Rosa asked § 87(2)(b) for his name, which § 87(2)(b) provided. PO De La Rosa asked § 87(2)(b) why he told PO Duffany something else earlier. § 87(2)(b) replied that he had tickets and was scared. Neither PO De La Rosa nor PO Duffany informed § 87(2)(b) at any point, that giving false pedigree information would subject him to criminal liability.

§ 87(2)(b) testified that when PO De La Rosa asked for his license and registration, he stated that he was going to reach into the glove department to get his paperwork. § 87(2)(b)'s identification had his name, but he also had his cousin's ticket in his vehicle because he paid the fine for him a week prior. De La Rosa did not give § 87(2)(b) a chance to explain anything or retrieve his paperwork. PO De La Rosa opened the driver's door of § 87(2)(b)'s vehicle and pulled § 87(2)(b) out of his vehicle. At some point, PO De La Rosa grabbed § 87(2)(b)'s wallet out of his hand and looked through it. § 87(2)(b) did not provide consent for this search. He was not sure when PO De La Rosa grabbed his wallet. Additionally, § 87(2)(b) knew that he was driving with a suspended driver's license.

PO De La Rosa testified that he and PO Duffany asked § 87(2)(b) several times whether he had any identification, and § 87(2)(b) replied that he did not. After going back and forth about the matter, § 87(2)(b) provided a temporary paper DMV license. PO Duffany ran the name that was on the temporary license and confirmed with PO De La Rosa that the photograph did not depict § 87(2)(b). PO De La Rosa did not recall the name on the paper license, but it was not § 87(2)(b). Based upon the photograph, he and PO Duffany established that there was probable cause to arrest § 87(2)(b) for false personation. § 87(2)(b) was asked to exit his vehicle, and he complied. § 87(2)(b) was considered under arrest at that point, so PO De La Rosa checked him for valuables and weapons. PO De La Rosa frisked § 87(2)(b)'s waistband and then searched § 87(2)(b)'s pants pocket and retrieved his wallet. He opened § 87(2)(b)'s wallet and took out his identification. There was no particular reason that § 87(2)(b) was searched prior to being handcuffed. At some point, PO De La Rosa ran § 87(2)(b)'s license, which revealed that his license was revoked in New York State, which additionally confirmed that § 87(2)(b) had provided false paperwork.

§ 87(2)(g) PO Duffany testified that after he and PO De La Rosa determined that the photograph on the temporary license was not § 87(2)(b), § 87(2)(b) was considered under arrest for false personation. PO De La Rosa then searched § 87(2)(b) and retrieved his driver's license from his wallet.

PO De La Rosa vouchered a temporary NYS DMV driver license (BR 12). A search in the Department of Motor Vehicles database with that license number yielded that the license belonged to Dwayne Massop, with a date of birth and address that differed from § 87(2)(b)'s personal information (BR 13).

A person is guilty of false personation when after being informed of the consequences of such act, he or she knowingly misrepresents his or her actual name, date of birth or address to a police officer or peace officer with intent to prevent such police officer or peace officer from ascertaining such information. NY Penal Law § 190.23 (BR 14).

A person is guilty of criminal impersonation in the second degree when he impersonates another and does an act in such assumed character with intent to obtain a benefit or to injure or defraud another. NY Penal Law § 190.25 (1) (BR 15).

To support a charge of criminal impersonation in the second degree, the benefit sought need not be monetary but may be to avoid problems or prosecution under defendant's real name. The word "another" refers to a real person and not a fictitious or assumed name. People v. Sherman, 116 Misc. 2d 109 (1982) (BR 16).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

Allegation (C) Force: Police Officer Kyron De La Rosa used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Ryan Duffany used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Kyron De La Rosa threatened § 87(2)(b) with the use of force.

In PO De La Rosa's BWC (BR 03), at the 02:59 mark in the video player, PO Duffany and PO De La Rosa asked § 87(2)(b) to exit from his vehicle, and he complied. At the 04:03 mark, PO De La Rosa told § 87(2)(b) to turn around. While PO De La Rosa faced § 87(2)(b) PO De La Rosa reached for § 87(2)(b)'s left arm with his left hand. § 87(2)(b) moved so that PO De La Rosa could not grasp his arm. PO Duffany, who was behind § 87(2)(b) grabbed § 87(2)(b)'s left arm with two hands. The video moved very quickly, and § 87(2)(b) ended up with his torso on top of the trunk of the vehicle. PO De La Rosa and PO Duffany tried to grab § 87(2)(b)'s arms while he moved around. § 87(2)(b) repeatedly yelled that he was sick and asked the officers why they were arresting him. At the 04:09 mark, PO De La Rosa stated, "You wanna get tased bro? Stop resisting right now." PO De La Rosa held his Taser and pointed it at § 87(2)(b)'s upper back, which was visible at the 04:12 mark. Between 04:13 and 04:19, PO De La Rosa stated four additional times that § 87(2)(b) would be struck with a taser if he did not stop resisting and put his arms behind his back. At the 04:34 mark, there were sounds of handcuffs clicking.

§ 87(2)(b) testified that PO De La Rosa opened the driver's door of his vehicle, grabbed both of his arms, and pulled him out of the vehicle. PO De La Rosa and PO Duffany then twisted his arms and attempted to handcuff him. § 87(2)(b) told the officers to stop because he could not breathe, but he did not fight back. § 87(2)(g)

§ 87(2)(b) PO De La Rosa pushed § 87(2)(b) against his vehicle. PO De La Rosa then stated that § 87(2)(b) was resisting and said, "Don't let me tase you." § 87(2)(b) ended up on the ground, on his back. Everything happened quickly, and § 87(2)(b) was not sure how he ended up on the ground. PO De La Rosa and PO Duffany tried to twist § 87(2)(b)'s arms again while he was on the ground and then pulled him up, where he was handcuffed by PO De La Rosa. § 87(2)(b) sustained chest pain, neck pain, and a lump on his forehead.

§ 87(2)(g)

§ 87(2)(b) PO De La Rosa clarified that § 87(2)(b) tried to push the officers away with his shoulder and elbow, and tried to move his wrists away from the officers. PO Duffany testified that § 87(2)(b) tensed up and kept his arms in front of him, so that the officers could not handcuff him. PO Duffany then pinned § 87(2)(b) against his vehicle in order to restrain him. He placed one of his arms against § 87(2)(b)'s back and used his other arm to try to pull § 87(2)(b)'s arm behind his back.

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. NYPD Patrol Guide, Procedure 221-01 (BR 17).

The use of a Conducted Electrical Weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from injuring themselves or others. Active resistance includes “physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.” NYPD Patrol Guide, Procedure 221-08 (BR 18).

§ 87(2)(b) s FDNY EMS medical records note that at the 47th Precinct stationhouse, § 87(2)(b) s chief complaint was that he did not want to be there because he was claustrophobic. § 87(2)(b) denied chest pain and other ailments. He stated that he did not want to go to the hospital and refused medical attention (BR 19). § 87(2)(b) s medical records from § 87(2)(b), from an emergency room visit at § 87(2)(b), note that his chief complaint was chest pain. § 87(2)(b) stated that he had neck surgery many years ago and had chest pain for the past two months, which increased after he was arrested. An X-ray and other tests did not yield any medical issues. § 87(2)(b) was given Tylenol and was released the following morning (BR 20).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation (F) Abuse of Authority: Police Officer Kyron De La Rosa seized § 87(2)(b) s property.

Allegation (G) Abuse of Authority: Police Officer Ryan Duffany seized § 87(2)(b) s property.

It is undisputed that after § 87(2)(b) was arrested, his vehicle was towed away from the location. In PO Reyes’ BWC footage (BR 08), at the 01:58 mark in the video player, PO Reyes, PO

Duffany, and PO De La Rosa tried to start § 87(2)(b)'s vehicle, but were unable to do so. PO De La Rosa stated that the vehicle needed to be towed to the precinct.

§ 87(2)(b) testified that PO De La Rosa and PO Duffany called a tow truck to tow his vehicle. § 87(2)(b) later stated (BR 21) that he retrieved his vehicle on September 19, 2019.

PO Duffany testified that § 87(2)(b)'s vehicle was towed back to the stationhouse because the officers were unable to get it to start with the key. The vehicle had to be taken back to the stationhouse because any time there is an arrest during vehicle stop, officers seize the vehicle.

PO De La Rosa's testimony was largely consistent with PO Duffany's. He clarified that he and PO Duffany left § 87(2)(b)'s vehicle on the scene with PO Reyes and PO Rivera.

§ 87(2)(b)'s vehicle was towed and vouchered, per property voucher #§ 87(2)(b) by PO De La Rosa (BR 12). The property voucher was received by the CCRB prior to September 19, 2019 and thus, it was not noted on the voucher when § 87(2)(b) retrieved his vehicle.

When an arrest is made for aggravated unlicensed operation of a motor vehicle in the first or second degree, and a person other than the operator is the registered owner and such person, or another person authorized to operate the vehicle, is not present, an officer shall remove the vehicle to a place of safety. NYS Vehicle and Traffic Law § 511-b (BR 22).

§ 87(2)(g)

Allegation (H) Abuse of Authority: Police Officer Kyron De La Rosa damaged § 87(2)(b)'s property.

In PO De La Rosa's BWC footage (BR 03), at the 25:51 mark in the video player, while § 87(2)(b) was in a holding cell at the 47th Precinct stationhouse, PO De La Rosa asked § 87(2)(b) to take off his bracelet, watch, and chain. § 87(2)(b) took off his jewelry and handed it to PO De La Rosa. Nothing appeared to be visibly damaged.

§ 87(2)(b) testified that during the vehicle stop, prior to being arrested, PO De La Rosa told § 87(2)(b) to take off his jewelry. § 87(2)(b) asked why, and PO De La Rosa did not reply. PO De La Rosa then physically pulled off § 87(2)(b)'s watch, bracelet, necklace, and earrings. The clasp of § 87(2)(b)'s watch broke.

PO De La Rosa testified that he did not recall when § 87(2)(b)'s jewelry was removed or which jewelry was removed, though an arrestee's property is typically removed during the lodging process. PO De La Rosa did not recall having to physically remove § 87(2)(b)'s jewelry from his person. PO De La Rosa did not damage § 87(2)(b)'s watch. PO De La Rosa did not know whether he saw § 87(2)(b)'s watch with damage at any point.

PO Duffany testified that while § 87(2)(b) was lodged in a holding cell, PO De La Rosa asked § 87(2)(b) for his jewelry. § 87(2)(b) handed PO De La Rosa his jewelry and PO De La Rosa did not have to remove it from § 87(2)(b)'s person. PO De La Rosa did not damage § 87(2)(b)'s watch.

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR 23).
- PO Duffany has been a member of service for four years and has been a subject in five CCRB cases and nine allegations, of which one was substantiated (BR 24).
 - 201903004 involved a substantiated allegation of failure to provide RTKA card. The Board recommended Instructions, and the NYPD concurred.
 - § 87(2)(g)
- PO De La Rosa has been a member of service for four years and has been a subject in 12 CCRB cases and 38 allegations, of which four were substantiated. Two cases are pending investigation (BR 25).
 - 201903004 involved substantiated allegations of failure to provide RTKA card and a question. The Board recommended Formalized Training, and the NYPD concurred.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A Notice of Claim inquiry was submitted to the NYC Comptroller's Office on October 16, 2020 and will be included in the case file upon receipt.

Squad No.: 6

Investigator: _____ Inv. § 87(2)(b)
11/9/2020

Signature

Print Title & Name

Date

Squad Leader: Jessica Peña
Signature

IM Jessica Peña
Print Title & Name

11/9/2020
Date

Reviewer: _____
Signature

Print Title & Name

Date